BEST BURGER/Los Angeles, Los Angeles County, California

LEASE AGREEMENT

THIS LEASE AGREEMENT is made and entered into as of March 1, 1998, by and

between:

(i) ABC AMERICAN PROPERTIES FUND, INC., a California corporation with principal office and place of business at 14400 Erwin St. Van Nuys, California 91401 ("Landlord"), and

(ii) BURGER TIME ACQUISITION COMPANY, L.L.C., a Georgia limited liability company, with a mailing address of 150 Garnett St SW, Atlanta, Georgia 30303 ("Tenant").

WITNESSETH:

Landlord leases to Tenant, for the purpose of developing, constructing and operating a Best Burger restaurant pursuant to the "Franchise Agreement" (defined in paragraph 13(a)(vi) below), and subject to the terms and conditions of the Rent Addendum and Construction Addendum attached hereto, and Tenant rents from Landlord the following described premises, (hereinafter "Premises") located in Los Angeles, Los Angeles County, CA and being more particularly described in Exhibit "A" attached hereto and made a part hereof, together with all rights and privileges in and about the Premises as may be necessary or convenient to Tenant's business inclusive of all easements benefitting the real property described in Exhibit "A". Premises shall include all improvements and structures whether now existing or hereafter constructed thereon.

The following additional stipulations are hereby declared to be covenants of this Lease and shall, unless otherwise expressly stated, be applicable at all times throughout the term of this Lease and any extension or renewal thereof:

1. DEFINITIONS

For purposes of this Lease, the following terms are hereby defined to mean:

"Annual Rental" shall mean the minimum annual rental payable under this Lease as set forth in the Rent Addendum.

"Effective Date" shall mean the first date set forth at the beginning of this Lease, which date shall be the date Landlord's funds were disbursed to the seller at the closing of Landlord's purchase of the Premises.

"Landlord" shall mean ABC AMERICAN PROPERTIES FUND, INC., a California corporation, and its successors and assigns.

"Lease" shall include any and all amendments hereto, if any, entered into from time to time hereafter.

"Lease Year" shall mean any twelve (12) month period commencing on January 1 of each calendar year and ending on December 31 of such year. For purposes of calculating rental adjustments under the Rent Addendum, the Lease Year shall mean a fiscal period beginning on the Effective Date (and each anniversary thereof) and expiring twelve (12) months thereafter.

"Partial Lease Year" shall mean a portion of a calendar year and shall be any period during the continuance of this Lease which does not begin on January 1st, but ends on December 31st; or begins on January 1st, but does not end on December 31st.

2. TERM AND RENT

(a) Term. The term of this Lease shall begin on the Effective Date and shall expire on a date twenty (20) years thereafter unless previously terminated or renewed or extended as provided herein.

(b) Rent. Rent shall be due and payable as provided in the Rent Addendum attached hereto and incorporated herein.

3. ALTERATIONS AND IMPROVEMENTS, INVESTMENT TAX CREDIT, MECHANIC'S LIENS, LANDLORD'S DISCLAIMER

(a) Tenant shall be permitted to install, use on and about, and remove from the Premises at any time and from time to time all trade fixtures and other personal property which are not a component of the building located or to be located on the Premises, all of which at all times shall remain the property of Tenant with the right of removal (subject to paragraph (d) below) at the expiration of this Lease. Trade fixtures shall be defined to include: (1) removable decor items, tables, trim, lighting, planters, trash units, cabinets and office equipment; (2) building lettering, signs, sign posts and sign standards; (3) unattached food and customer service equipment; (4) food and customer service equipment attached to the building by bolts and screws and/or by utility connections, including without limitation walk-in refrigerators and freezers, remote refrigeration systems, exhaust systems and hoods; and (5) those items described on Exhibit "B" attached hereto. Tenant shall be responsible for promptly repairing any damage to the Premises caused by removal of any of Tenant's trade fixtures and other personal property. Tenant shall also have the right, at its option and expense, to redecorate or otherwise remodel the Premises at any time or from time to time, provided however, Tenant shall not impair the structural condition of the Premises or reduce the size thereof. Tenant shall have the right to make any additions, alterations, change and improvements, structural and nonstructural, including but not limited to construction of additional buildings and additions to the then existing buildings, as Tenant shall desire; provided, however, (i) if the costs of any proposed alterations or remodeling shall exceed Twenty-five Thousand Dollars (S25,000.00), then Tenant shall submit pians of all structural changes to Landlord at least thirty (30) days in advance of the proposed construction date, which shall require Landlord's prior written approval prior to commencing work, which approval shall not be unreasonably withheld, (ii) if the cost of structural changes exceeds One Hundred Thousand and No/100 Dollars ($100,000.00), Tenant shall post payment and performance bonds for such work naming Landlord and Tenant as dual obligees, and (iii) all such construction shall be made in a workmanlike manner and in full compliance with all building laws and ordinances applicable thereto, at Tenant's expense. All such additions, alterations, changes and improvements shall be a part of the Premises.

(b) Landlord hereby grants Tenant the right and privilege of applying for and receiving all investment tax credits, if any, under the Internal Revenue Code and/or applicable State tax law which may be available with respect to the building and other improvements to be constructed. To this end, Landlord agrees to execute all such further documents and supply such additional information as may be required to make such election effective.

(c) Tenant shall not do or suffer anything to be done whereby the Premises, or any part thereof, becomes encumbered by a mechanic's lien or similar lien, and, if, whenever and as often as any mechanic's lien or similar lien is filed against the Premises, or any part thereof, purporting to be for or on account of any labor done, materials or services furnished in connection with any work in or about the Premises, done by, for or under the authority of Tenant, or anyone claiming by, through or under Tenant, Tenant shall discharge the same of record within thirty (30) days after service upon Tenant of notice of the filing thereof; provided, however, Tenant shall have the right to remove the lien by bonding same in accordance with applicable law and to contest any such lien; provided that Tenant shall diligently prosecute any such contest, at all times effectively staying or preventing any official or judicial sale of the Premises under execution or otherwise, and, if unsuccessful, satisfy any final judgment against Tenant adjudging or enforcing such lien or, if successful, procuring record satisfaction or release thereof.

(d) All trade fixtures and other personal property (exclusive of electrical, heating and air conditioning) placed in or upon the Premises by Tenant shall remain Tenant's property with the right to remove the same at any time during the term of this Lease. Landlord hereby waives, if requested by Tenant, and agrees to execute such documentation waiving its lien rights (vis a vis any equipment lender or equipment lessor) to Tenant's trade fixtures, equipment and other personal property and to all rights of levy for distraint for rent against same as shall be reasonably required by any equipment lender or equipment lessor of Tenant, and agreeing to allow such equipment lender or equipment lessor to enter upon the Premises after a default by Tenant under Tenant's financing documents, for the purpose of removing Tenant's trade fixtures, equipment or other personal property, provided that the form and content of any such waiver are similar in form and content to the form attached hereto as Exhibit "C" or are otherwise reasonably satisfactory to Landlord and its counsel; provided any damage caused by, or resulting from the removal of any trade fixtures, equipment or other personal property shall be promptly repaired by Tenant or the party entitled to remove same.

4. DESTRUCTION OF PREMISES: INSURANCE

(a) If the Premises are damaged or destroyed by fire, flood, tornado or other element, or by any other casualty and such damage or destruction does not occur within the last twenty-four (24) months of the original or of any extended or renewed term of this Lease, this Lease shall continue in full force and effect and Tenant shall, as promptly as possible, restore, repair or rebuild the Premises to substantially the same condition that they were in before their damage or destruction. Tenant shall for this purpose use all, or such part as may be necessary, of the insurance proceeds received from insurance policies carried on the Premises under the provision of subparagraph 4(b) hereinbelow. Insurance proceeds collected by Landlord shall be disbursed to Tenant for reconstruction and repair in accordance with commercially reasonable escrow procedures. If such insurance proceeds are not sufficient to pay such costs, Tenant

shall pay such deficit. Should the Premises be damaged or destroyed by any of the foregoing described casualties, or by any other casualty within the last twenty-four (24) months of the original term or of any extended or renewed term of this Lease, to the extent that they are untenantable or unsuitable, in Tenant's opinion for continued use in the normal conduct of Tenant's business, Tenant shall have the right, exercisable by written notice to Landlord given within thirty (30) days after the date of such damage or destruction, of terminating this Lease effective upon the date of such damage or destruction. If Tenant terminates this Lease as thus provided Landlord shall be entitled to all of the insurance proceeds on the building and permanent improvements, but not to the proceeds of insurance carried by Tenant on its fixtures, equipment and other personal property; provided, however, Tenant shall not have the right to terminate this Lease unless (i) the damage or destruction of the Premises was caused by a peril which was insured against by the provisions of subparagraph 4(b) of this Lease; (ii) at the time of such damage and destruction the said insurance policies to be carried by Tenant were in the amount of the full replacement cost of such improvements (without deduction or co-insurance, but including a deductible as permitted below) and in full force and effect; and (iii) the insurer has confirmed coverage and its obligation to pay. If Tenant defaults in its obligation to carry insurance in the amount required under subparagraph 4(b), then Tenant shall be obligated to pay toward said reconstruction or to Landlord, if this Lease is canceled but prior thereto, the difference between the amount actually carried and the amount required to be carried under this paragraph.

(b) Tenant, at its expense and as additional rent hereunder, shall throughout the term of this Lease and any extension or renewal thereof, keep the building and other permanent improvements on the Premises insured with "all risk" coverage, including code changes, glass breakage, vandalism and malicious mischief coverage (all risk" as such term is used in the insurance industry) for the full replacement value (with a deductible of no more than Fifty Thousand Dollars ($50,000.00)). If Tenant serves alcoholic beverages, or if the Premises are located in a flood or earthquake zone, then additional coverage shall be obtained by Tenant in amounts and in forms acceptable to Landlord. Tenant shall provide Landlord with copies of such policies or certificates of such coverage, and the policy or policies shall name Landlord and any mortgagee designated by Landlord as a loss payee and shall provide that all losses shall be payable as herein provided. All such policies of insurance shall provide that the amount thereof shall not be reduced and that none of the provisions, agreements or covenants contained therein shall be modified or canceled by the insuring company or companies without thirty (30) days prior written notice being given to Landlord; and that all insurance proceeds shall be paid by check payable to Landlord, or, if required by the applicable insurance company, proceeds are to be paid by check payable to Landlord and Tenant, which Tenant shall promptly endorse to Landlord. Such policy or policies of insurance may also cover loss or damage to equipment, fixtures and other personal property and improvements removable by Tenant at the end of the term hereof. The insurance proceeds applicable to equipment, fixtures and other personalty, property and removable improvements are not to be payable to the Landlord or any mortgagee but shall accrue and be payable solely to Tenant. In the event of a casualty where Tenant is required to repair or rebuild under subparagraph 4(a) above or Tenant otherwise chooses to repair or rebuild, Tenant shall be responsible for any deficiency between the replacement cost of the building and the amount actually paid by the insurance company.

(c) Tenant shall maintain, at its own expense and as additional rental, commercial general liability insurance covering the Premises, for the joint benefit of and insuring Tenant and, as an additional insured as its interest may appear, Landlord, with single limit coverage of not less than Ten Million Dollars ($10,000,000.00). Said policy of insurance may be in the form of an umbrella policy covering these and other Premises, provided that Landlord is (and if Landlord is either a general or limited partnership, all general partners are) named as an additional insured. All such policies of insurance shall provide that the amount thereof shall not be reduced and that none of the provisions, agreements or covenants contained therein shall be modified or canceled by the insuring company or companies without thirty (30) days prior written notice being given to all parties to this Lease. A copy of the policy or certificate of such insurance shall be delivered to Landlord and shall be issued by a company or companies licensed to do business in the state where the Premises are located.

(d) Tenant shall maintain, at its own expense, business interruption insurance covering risk of loss due to the occurrence of any of the hazards insured against under Tenants' all risk" coverage insurance and providing coverage in an amount sufficient to permit the payment of rents payable hereunder for a period (in such case) of not less than six (6) months. All such policies of insurance shall provide that Landlord is loss payee; and that the amount thereof shall not be reduced and that none of the provisions, agreements or covenants contained therein shall be modified or canceled by the insuring company or companies without thirty (30) days prior written notice being given to all parties to this Lease. A copy of the policy or certificate of such insurance shall be delivered to Landlord and shall be issued by a company or companies licensed to do business in the state where the Premises are located.

5. MAINTENANCE AND REPAIR

(a) Tenant shall maintain the Premises and all buildings and improvements thereon (interior and exterior, structural and otherwise) in good order and repair and, subject to the provisions of paragraph 4(a) with respect to damage within the last twenty-four (24) months of the Lease, and paragraph 6 herein, return the Premises and all buildings and improvements thereon at the expiration of the term of this Lease or any extension thereof in as reasonably as good condition as when received, ordinary wear and tear, and the acts or omissions of Landlord, its agents, servants, employees and contractors, all excepted.

(b) Tenant agrees that Landlord shall have no obligation under this Lease to make any repairs or replacements (including the replacement of obsolete components) to the Premises or the buildings or improvements thereon, or any alteration, addition, change, substitution or improvement thereof or thereto, whether structural or otherwise. The terms "repair" and "replacement" include the replacement of any portion of the Premises which have outlived their useful life during the term of the Lease (or any extensions thereof). The intention of this Lease is that the rent received by Landlord shall be free and clear of any expense to Landlord under this Lease for the construction, care, maintenance (including common area maintenance charge and charges accruing under easements or other agreements relating to the Premises), operation, repair, replacement, alteration, addition, change, substitution and improvement of or to the Premises and any building and improvement thereon. Upon the expiration or earlier termination of this Lease, Tenant shall remain responsible for, and shall pay to Landlord, any cost,

charge or expense for which Tenant is otherwise responsible for hereunder attributable to any period (prorated on a daily basis) prior to the expiration or earlier termination of this Lease.

6. CONDEMNATION

(a) In the event that the whole or any material part of the building on the Premises or such a material portion of the land (for purposes hereof, "material" shall mean more than 20% of the building on the Premises or more than 40% of the land or more than 10% of the parking spaces or the drive-thru lane or the primary means of access, ingress and egress to and from the Premises) shall be taken during the term of this Lease or any extension or renewal thereof for any public or quasi-public use under any governmental law, ordinance, regulation or by right of eminent domain, or shall be sold to the condemning authority under threat of condemnation with the result that the Premises cannot continue to be operated as the type of restaurant contemplated herein, or if all reasonable access to the adjacent roadways from the existing or comparable curb cuts shall be taken (any of such events being hereinafter referred to as a "taking), Tenant shall have the option of terminating this Lease as of a date no earlier than the date of such taking on not less than fifteen (15) days prior written notice from Tenant.

(b) In the event of any taking which does not give rise to an option to terminate or in the event of a taking which does give rise to an option to terminate and Tenant does not elect to terminate, Landlord shall make its award available to Tenant and Tenant shall, to the extent of the award from such taking (which word "award shall mean the net proceeds after deducting expenses of any settlement, or net purchase price under a sale in lieu of condemnation but shall exclude the value of Landlord's reversionary interest, to the extent specifically allocated and awarded for the same), promptly restore or repair the Premises and all improvements thereon (except the items which Tenant is entitled to remove) to the same condition as existed immediately prior to such taking insofar as is reasonably possible. If the estimated cost of restoration or repair shall exceed the amount of Landlord's award, Tenant shall deposit with Landlord the amount of such excess or post an unconditional bond in favor of Landlord, and in form acceptable to Landlord, in the amount of such excess. The award and any excess shall be held in trust by Landlord and used for the purpose of such restoration or repair. A just and proportionate part of the Annual Rental payable hereunder shall be abated from the date of such taking until ten (10) days after Tenant has restored same and thereafter the Annual Rental shall be equitably reduced. If the award shall exceed the amount spent or to be spent promptly to effect such restoration, repair or replacement, such excess shall unconditionally belong to Landlord and shall be paid to Landlord.

(c) In the event of any partial taking where this Lease is not terminated, Tenant shall not be entitled (except for use in reconstruction) to any part of the compensation or award given Landlord for the taking of the fee of the Premises, but Tenant shall have the right to recover from the condemning authority such compensation as is specifically awarded to Tenant (i) to reimburse Tenant for any cost which Tenant may incur in removing Tenant's trade fixtures and other personalty from the Premises, (ii) for loss of business, and/or (iii) for loss of or diminution in value of Tenant's leasehold estate.

(d) If this Lease is terminated by reason of a taking then Landlord shall be entitled to receive the entire award in any such condemnation or eminent domain proceedings or purchase in lieu thereof and Tenant

hereby assigns to Landlord all of its right, title and interest in and to all and any part of such award, provided, however, Tenant shall be entitled to receive any award specifically made to reimburse Tenant for any costs which Tenant may incur in removing Tenant's trade fixtures and other personalty from the Premises and for loss of business.

7. TAXES AND ASSESSMENTS

During the original term and all renewals or extensions of this Lease but only upon Landlord's request after the occurrence of any uncured (i.e., after notice of default is given by Landlord to Tenant which expires without cure) event of default hereunder, Tenant shall pay to Landlord on a monthly basis with each monthly payment of Annual Rental, a sum equivalent to one-twelfth (1/12) of the annual amount estimated by Landlord to be sufficient to pay, at least thirty (30) days before they become due, all taxes, assessments and other similar charges (collectively, the "taxes") levied against the Premises. Landlord shall provide Tenant with written notice of its tax estimate and the current or prior tax bills upon which the estimate is based, and following receipt of such notice Tenant shall pay the newly estimated tax escrow. Landlord shall not be required to hold such sums in a segregated account, and no interest shall be payable by Landlord to Tenant with respect to any amounts paid by Tenant pursuant to this paragraph. Such sums shall be applied by Landlord to the taxes, with the surplus, if any, to be carried over on a year-to-year basis. Upon expiration of the term of this Lease (as extended), or the earlier termination hereof, Landlord shall apply the tax escrow installment account balance to Tenant's remaining liability for taxes, rent, or other obligations of Tenant under this Lease, with any surplus to be refunded to Tenant. Upon demand by Landlord, Tenant shall deliver and pay over to Landlord such additional sums as are necessary to satisfy any deficiency in the amount necessary to pay the taxes before the same become due. In the event of a default under this Lease, Landlord may apply the tax escrow installment account balance against any sums due and payable to Landlord under this Lease.

8. COMPLIANCE, UTILITIES, SURRENDER

(a) Tenant at its expense will promptly comply with all governmental requirements, whether or not compliance therewith shall require structural changes in the Premises; will procure and maintain all permits, licenses and other authorizations required for the use of the Premises or any part thereof then being made and for the lawful and proper installation, operation and maintenance of all equipment and appliances necessary or appropriate for the operation and maintenance of the Premises. Tenant shall also comply with the terms and requirements of all reservations, easements and restrictions of record as of the Effective Date (or recorded later with the approval or acquiescence of Tenant) as may affect the Premises. Tenant shall indemnify and save Landlord harmless from all expenses and damages by reason of any notices, orders, violations or penalties fled against or imposed upon the Premises, or against Landlord as owner thereof, because of Tenant's failure to comply with this paragraph.

(b) Tenant shall pay all charges for heat, water, gas, sewage, electricity and other utilities used or consumed on the Premises and shall contract for the same in its own name. Landlord shall not be liable for any interruption or failure in the supply of any such utility service to the Premises unless caused by or

resulting from the gross negligence or willful misconduct of Landlord, its agents, servants, employees or contractors.

(c) Tenant shall peacefully surrender possession of the Premises, the buildings and other improvements thereon, to Landlord at the expiration, or earlier termination, of the original term or any extended or renewed term of this Lease.

9. QUIET ENJOYMENT

Landlord covenants and warrants that Landlord has full power and authority to make this Lease, and that Tenant shall have and enjoy full, quiet and peaceful possession of the Premises, their appurtenances and all rights and privileges incidental thereto during the term hereof and any renewals or extensions, subject to the provisions of this Lease and any title exceptions or defects in existence at the time of the conveyance of the Premises to Landlord by Tenant.

10. OPTION TO RENEW

Tenant shall have two (2) successive five (5) year options to extend this Lease for up to an additional ten (10) years upon the same terms, covenants, conditions and rental as set forth herein provided that Tenant is not in default hereunder at the commencement of the respective additional period. Tenant may exercise each such five (5) year option successively by giving written notice to Landlord not less than six (6) months prior to the respective expiration of the initial term of this Lease and of the then five year option period. Should Tenant fail to give Landlord such timely written notice during the required period, all remaining rights of renewal shall automatically expire.

11. FIRST RIGHT OF REFUSAL TO PURCHASE; OPTION TO PURCHASE

(a) So long as Tenant is not in default under this Lease, Tenant shall have a preemptive right to purchase the Premises in accordance with the following conditions. If Landlord receives and desires to accept a bona fide offer to purchase (excluding any transfer to an affiliate of Landlord) the Premises during the term of this Lease or any extension or renewal thereof, Landlord shall serve a notice on Tenant stating the name of such offeror with a copy of the terms and conditions of such offer attached and Tenant shall have the right to purchase the Premises on the same terms and conditions set forth in Landlord's notice, provided Tenant mails written notice to Landlord of its election to do so within twenty (20) days after receipt of such notice from Landlord. If Tenant does not elect to exercise its right to purchase as aforesaid, Landlord may sell the Premises subject to this Lease, provided the sale is consummated with the offeror and on the terms and conditions set forth in Landlord's notice to Tenant. The foregoing preemptive right shall remain in existence notwithstanding its non-exercise in respect to any sale and shall be binding upon Landlord's successors in title.

(b) Tenant shall have the option to purchase the Premises at any time after the seventh (7th) Lease Year, as follows:

(i) Tenant shall exercise its option hereunder by giving notice in writing to Landlord in accordance with the requirements of paragraph 19 of this Lease during the applicable option period as set forth above. At the time of the exercise of the option, Tenant shall also pay to Landlord a non-refundable deposit of Five Hundred Dollars ($500.00).

(ii) The purchase price to be paid by the Tenant shall be the greater of (A) the fair market value of the Premises as of the date of the exercise of the option, as determined by an appraisal of an M.A.I. qualified appraiser selected by the Landlord and paid by Lessee, or (B) Landlord's cost for the Premises, plus twenty percent (20%). In the event that Tenant is not satisfied with the fair market value as determined above, then Tenant may, at Tenant's sole cost and expense, obtain a second appraisal prepared by an M.A.I. qualified appraiser selected by Tenant. If either Landlord or Tenant cannot agree on the fair market value of the Premises as determined by both appraisals, then Tenant shall have the right to forego exercise of the option within thirty (30) days of receipt of the appraisals or to require the two appraisers select a third M.A.I. qualified appraiser, at Landlord's and Tenant's shared expense, who shall determine the fair market value of the Premises which if not deemed acceptable by either party, either party may then terminate the sale.

(iii) The closing pursuant to the option shall be held in the office of Landlord's attorneys on or before a date which is thirty (30) days after Landlord and Tenant have received the last of the above mentioned appraisals from the appraiser, or at such other place as shall be acceptable to the Landlord.

(iv) Tenant shall receive a credit for the deposit required under (i) above and the balance of the purchase price shall be paid at closing in cash, by cashier's check on cleared local funds or by wire transfer to Landlord's account.

(v) All expenses of closing (except as set forth above) shall be paid equally by Tenant and Landlord, except that each party shall pay for its own legal expenses.

(vi) The option granted to Tenant pursuant to this subparagraph (b) shall terminate and become null and void in the event Tenant's right of first refusal becomes operative and Tenant fails to exercise such right of first refusal and the Landlord closes on the sale of the Premises to the third party offeror.

(vii) Conveyance by Landlord to Tenant shall be made by a special warranty deed, subject to current years taxes and assessments, all matters existing on the Effective Date and all other recorded instruments previously approved by Tenant.

(c) The rights and options granted in (a) and (b) above are subject and subordinate to any rights or options currently of record or those existing under Tenant's franchise agreement, if any.

12. USE: NONCOMPETE

The use of the Premises shall be limited to operation of (i) a single concept Best Burger restaurant or a dual concept Best Burger restaurant operated concurrently with another nationally or regional recognized chain or (ii) another nationally or regionally recognized chain approved in writing by Landlord and in accordance with such reasonable conditions the Landlord may require to confirm the existence of a valid

franchise agreement and all required approvals necessary for a change in use. Tenant shall not own an interest in, or operate, an Best Burger restaurant or another concept currently in operation on the Premises within a one mile (1) mile radius of the Premises, unless approved in writing by both Lessee's franchisor and by Landlord, such approval not to be unreasonably withheld by Landlord. Violation of this covenant shall constitute a default hereunder and, because the parties agree that damages would not be an adequate remedy, Tenant hereby agrees that Landlord shall be entitled to equitable relief, including injunctive relief and specific performance in addition to any remedy available at law.